400 CHINA BASIN

CLUBHOUSE RESERVATION AND AMENITY USE POLICY

San Francisco, California 2025

CHINA BASIN CLUBHOUSE RESERVATION & AMENITY USE POLICY

The Board of Directors has adopted this China Basin Clubhouse Reservation & Amenity Use Policy as an addendum to the DCC&Rs and other governing documents for this Association and therefore, a violation of this policy can be considered a violation of the DCC&Rs and the deed, as applicable by the current laws and ordinances of the United States, State of California and of the Ordinances of the City of San Francisco, and all of its agencies.

The Board of Directors has adopted this China Basin Clubhouse Reservation & Amenity Use Policy for purposes of maintaining the highest possible Quality of Life for, and to maintain the safest environment and practices for its Owners and Residents.

DESCRIPTION OF CLUBHOUSE AND OTHER AMENITIES OF THE PROPERTY

The **8th Floor Clubhouse** (hereinafter "Clubhouse") is an amenity center consisting of a lounge area with a television, bathroom and a dining area and ante-Outdoor Lounge directly adjacent to the Clubhouse, although considered a separate amenity area from the Outdoor Lounge (which may be used separately.)

Reservation for the Clubhouse is for that space enclosed within the cement and glassed boundaries of the room only and does not include the Outdoor Lounge directly adjacent to the clubhouse, but separated by a glass wall. The **Outside Lounge** may not be reserved and may be used by anyone wishing to use it, even during times that the Clubhouse has been reserved, and its use may not be restricted at any time by those Owners reserving the Clubhouse.

Pet Wash Room is the room on the first floor containing pet washing equipment. This is for the exclusive use by Owners and Residents only, and not their guests nor visitors; not even if accompanied by Owners/Residents.

Roof Deck is the recreational area at the very top floor of the building and containing seating and viewing areas to benefit from the 360 degree view of the City of San Francisco and the San Francisco Bay. This area is open to Owners and Residents. The guests and visitors of Residents may use this area but only if accompanied by the Owner or Resident they are visiting.

Recreation Deck is located on the 2nd floor and is available for use by Owners and Residents, and their Guests and Visitors. The Recreation deck cannot be reserved nor its use restricted at any time.

400 CHINA BASIN

DESCRIPTION OF CLUBHOUSE AND OTHER AMENITIES OF THE PROPERTY (continued)

The boundaries of the Recreation Deck is the entire outdoor area beyond the building's doors, and does not include the Yoga Room.

Yoga/Play Room. The Yoga/Play Room is located on the 2nd floor, and is enclosed on all sides by cement and glass walls. The Yoga/Play Room amenity is reservable without fee or security deposit, only under the following conditions. Also, people should be allowed to use this room for the purpose below without reservation if it is not otherwise reserved.:

a. If the function is yoga or health and fitness related or indoor playtime for parents of children between the ages of 2-7;
b. No food nor drink will be served;
c, The person reserving the Yoga/Play Room is Owner or Resident of 400 China Basin
d. The new reservation does not conflict with pre-existing reservations for the Yoga Room;
e. Maximum two hour reservation

Business Center. This area is located on the 1st floor directly adjacent to the lobby but separated by cement and glass walls on all sides. The Business Center may be reservable without fee nor security deposit, but only under the following conditions:

a. If the function is business admin;
b. No food allowed. Restrict liquids to water.
c. The person reserving the Business Center is an Owner or Resident of 400 China Basin
d. The new reservation does not conflict with pre-existing reservations for the area.
e. Maximum four (4) hour reservation
f. If Property management is not using the room to carry out high priority or emergency operations of or for the property.

The above parameters for reserving the Business Center amenity will only be in effect until such time that onsite property management (if initiated by the Board of Directors) may convert the primary function of the space from Business Conference Center to that of Onsite Property Manager's Office or/and Front Desk Services. But, at the time of the publishing of this Clubhouse and Amenity Use Policy document in April 2025, the current primary function is that as an Amenity space for Owners for the described above.

CHINA BASIN CLUBHOUSE RESERVATION & AMENITY USE POLICY

RULES FOR USE OF ANY AND ALL AMENITY SPACES, WHETHER RESERVED OR NOT:

Since all Owners and residents of the Community must comply with these rules, regulations and policies, the Association strongly recommends that all Owners and Residents review them carefully. Owners are also responsible for ensuring that the Occupants of their unit and its Guests and Visitors comply with these rules. General Rules For Use of the reservable Amenity Spaces for Exclusive Use For China Basin Owners Association.

Additional Note: No recreational activity involving balls or throwing implements is permitted in any of the common areas. Such recreational instruments include but are not limited to pickle balls, tennis balls, basketballs, softballs. The only exception is the use of inflatable balls for use in the Yoga/Play Room.

1. The Reservable Amenity Spaces are available for use by the Owners and Residents of China Basin Owners Association and their respective Guests only, with restrictions as outlined previously in this 2025 China Basin Clubhouse Reservation & Amenity Use Policy .

2. **The hours of the Clubhouse is 10am – 10pm. The Yoga Room Hours are 8am – 08pm, and the Business Center hours are 5am – 10pm.**

3. **Minors.** Persons under the age of 13 in the Amenity Spaces with the exception of the Bike Room must be accompanied by an adult resident. Persons under the age of 13 must be supervised at all times by an adult resident.

4. **Pets.** Pets are not permitted in the Amenity Spaces at any time, except for marked and/or approved service animals that are required to be permitted by law. Service animals that are required to be permitted by law must be on a leash or harness or similar mechanism and in control of a person at all times. If an animal relieves itself in Amenity Spaces, the owner of the animal is responsible for immediately and thoroughly removing pet waste and cleaning the area as instructed by the Board of Directors and/or Property Management to restore it to its prior condition. Failure to clean up after any animals in Amenity Spaces will result in a $200.00 or actual cost (whichever is higher) fee per occurrence charged to the Owner. If the offending pet owner is a visitor or non-resident, then the Owner or Resident host will be charged for the clean up.

5. **Smoking and Vaping** . Smoking (whether for medicinal purposes or not) is not permitted in the building or directly surrounding Association Property at all times except inside of an Owner's unit with the door closed.

6. **Alcohol.** Alcohol is not permitted in Amenity Spaces unless pre-authorized in writing by the Board, either for a Community event or a private Owner event. During private events, the Owner who signs the Amenity Spaces agreement is fully responsible for any liability related to alcohol service, including if a professional service is used. Alcoholic beverages must not be served to minors under any circumstances.

7. **Occupancy Limits.** Local fire code limits capacity as per the posted signage. All Owners, Occupants and guests must abide by these occupancy limits when using Amenity Spaces, even during private events.

400 CHINA BASIN

CHINA BASIN CLUBHOUSE RESERVATION & AMENITY USE POLICY

RULES FOR USE OF ANY AND ALL AMENITY SPACES, WHETHER RESERVED OR NOT:

8. **Noise.** Use of The Amenity Spaces, even during private events, must at all times comply with the noise ordinance of The City of San Francisco, as well as the Association and Master Association governing documents.

9. **Conduct**. All individuals utilizing Amenity Spaces must be polite and respectful to other residents, guests, and Association representatives. Disorderly conduct and/or abusive language will not be tolerated in The Amenity Spaces at any time. Owners are responsible for the conduct of guests while using The Amenity Spaces.

10. **Damage or Repairs**. Owners are responsible for any damage to The Amenity Spaces caused by the Owner or such guests including but not limited to equipment, electronics, flooring, appliances, fixtures, walls, countertops, furniture, decorations or furnishings.

Private Events for Reservable Amenity Spaces:

12. **Use of The Amenity Spaces**, especially for private events, is a privilege, not a right. Failure to adhere to The Amenity Spaces rules may result in suspension of future private event privileges and/or assessment of additional fees.

13. **Availability.** Reservations for private events at The Amenity Spaces may be made on a first come, first served basis with a completed application package. The Amenity Spaces may be reserved for private events no more than once per day. Owners reserving The Amenity Spaces may not have outstanding violations of the governing documents of the Association or the Master Association and the owner must be current on all Association and Master Association assessments. Each home may only reserve Clubhouse no more than twice per calendar month. Private events must be concluded by 10:00pm.

14. **Purpose of Events.** Use of The Amenity Spaces is restricted to private events for residents. No admission may to be charged to attend private events. The Amenity Spaces may not be used to sell products for commercial or personal gain during private events, except that alcohol may be sold by a licensed caterer, bar service, or professional company with prior authorization by the Board of Directors. If the purpose for the use of The Amenity Spaces is misrepresented in any way to the Board, the reservation for the private event may be cancelled without a refund of any fees already paid to the Association, and future use of The Amenity Spaces for private events may be prohibited.

400 CHINA BASIN

CHINA BASIN CLUBHOUSE RESERVATION & AMENITY USE POLICY

RULES FOR USE OF ANY AND ALL AMENITY SPACES, WHETHER RESERVED OR NOT: **Private Events for Reservable Amenity Spaces. (Continued)**

15. The Amenity Spaces Private Event Reservation Hours may vary, and hours may be changed at any time via a majority vote by the Board of Directors in a Regular Open Meeting.

16. **Jumpers & Bounce Houses.** No jumpers or bounce houses are permitted inside The Amenity Spaces or in the surrounding Association Property at any time.

17. **Reservation Process.** A signed Amenity Space Reservation Agreement and proof of payment of the private event fee must be received by the Association at least ten (10) days in advance of the private event reservation date. The reservation process and all applicable fees are determined by the Board of Directors and subject to change from time to time. The reservation process and applicable fees (including any use and cleaning fees and deposits required) can be found on The Amenity Spaces Reservation Agreement that will be signed by the Owner. The signed Amenity Spaces Reservation Agreement, payment of fees and deposits, and, if event insurance is required, the Certificate of Liability Insurance must be received no less than ten (10) days I n advance of the private event. If a reservation is cancelled within ten (10) days of the reservation date or if the required fees, deposits, documents and evidence of insurance are not timely received by the Association, the Owner will be liable for all fees or costs charged to the Association due the private event cancellation. For example, if the Association is charged a cancellation fee by a vendor retained by the Association in connection with a reservation, the Owner that reserved The Amenity Spaces for the private event will receive a notice to attend a hearing regarding the Owner's reimbursement of the Association for the cost. If a private event reservation is cancelled after payment has been made, that payment is not refundable, but any remaining amounts after the Association deducts its fees and costs may be used towards a future private event reservation at The Amenity Spaces. **Reservations can be made by contacting Action Property Management at managerassistanthelp@actionlife.com.**

19. **Reservation Costs.** The cost to reserve The Amenity Spaces and any additional costs will be paid by the Owner of the home hosting the private event. The reservation fee can be paid by check or added as an additional charge to the Owner's monthly assessment invoice. A base reservation fee will be charged for all private events. Additional reservation costs may be required for actual expenses to the Association throughout the reservation process based upon the nature, character and size of the event, which may include, but is not limited to, a reservation processing fee, a pre and post event checkout inspection, a post-event cleaning fee, restocking of The Amenity Spaces supplies and/or actual third-party expenses. <u>All reservation costs are non-refundable.</u>

400 CHINA BASIN

CHINA BASIN CLUBHOUSE RESERVATION & AMENITY USE POLICY

RULES FOR USE OF ANY AND ALL AMENITY SPACES, WHETHER RESERVED OR NOT: **Private Events for Reservable Amenity Spaces. (Continued)**

20. Cleaning. The Owner hosting the event is still expected to leave The Amenity Spaces in a neat and clean condition following the reservation of The Amenity Spaces. The Amenity Spaces must be thoroughly cleaned by the end of the event, but in no event later than 10:00 pm the day of the private event. Cleaning Amenity Spaces after the event by the Owner/Renter includes removing all food and waste and placing into appropriate trash receptacles, cleaning any and all food and liquid spills, cleaning all countertops, tabletops and appliances, sweeping The Amenity Spaces floors, and if necessary, mopping the floors. If, following a reservation of the Amenity Spaces, the Board determines additional cleaning services are required by the Association's contracted cleaning service because The Amenity Spaces was not left in a neat and clean condition, the Owner of the home hosting the event will be responsible for any and all costs incurred by the Association.

21. Event Insurance. Event insurance may be required by the Board for certain private events held at The Amenity Spaces, depending on the nature, character and size of the event. If a private event will be serving alcohol, event insurance will be required regardless of the nature, character and/or size of the event. Any event insurance that is required to be obtained shall have liability coverage in the amount of $1,000,000.00, naming the Association, and Property Management Company as 'Additional Named insureds' and shall be provided to the Board no later than ten (10) days prior to the private event. If is the Association discovers that alcohol was served during a private event and the Association was not notified and/or proof of event insurance was not timely provided to the Association, the Owner hosting the private event will be called to a disciplinary hearing in front of the Board of Directors, and future use of The Amenity Spaces for private events may be prohibited.

22. The Board of Directors may include additional rules, regulations and requirements for private events in The Amenity Spaces Reservation Agreement. Owners are encouraged to fully review The Amenity Spaces Reservation Agreement. The Board of Directors have the right to reject any application for reservations of Amenity Spaces at their discretion. Although, delinquent Homeowners cannot be barred from using any Amenity Spaces, they could be restricted from Reserving those spaces until their account is brought current. Therefore, *reserving* an Amenity Space for temporary exclusive use is a Privilege and Not a Right.

400 CHINA BASIN

AMENITY SPACE RESERVATION AGREEMENT

Amenity Non-Refundable Reservation Fee is: $100. Security Deposits for Amenity Spaces is: $350.

Name of Owner: _____

Owner's Complete Unit Address: 400 China Basin Street, Unit #_____, SF CA 94158

Owner's Email: _____

Contact Name (if different than Owner): _____

Contact Phone: _____

Event Date: _____

Time Duration: _____ am/pm to _____ am/pm

Amenity Space Name (Circle One): Clubhouse
Note: If an Amenity Space is not circled, then your reservation attempt is voidable.

I agree to the following conditions on renting the above circled Amenity Space:

A. Amenity Space renter (hereinafter referred to as "Renter") must be a bona-fide Homewoner/Owner of a unit in our building. The Owner must be present during the entire rental period.

B. There is a $100 Usage Fee per reservation that is applied toward continuing Association maintenance, repair and replacement obligations of the Amenity Spaces. Certain public interest events are exempted from the Usage Fee under Civil Code section 4515.

C. Owners and their guests and their vendors understand and agree to use the Amenity Spaces at their own risk. Renters and their guests hold harmless China Basin Homeowners Association from any and all damage sustained through bodily injury, property damage, personal injury, liability to or by his/her/their guests.

D. Reservation requests must be received by Management at least ten (10) days in advance with usage fee and deposit. Reservation is NOT confirmed until the fee and deposit checks are received by Property Management.

400 CHINA BASIN

AMENITY SPACE RESERVATION AGREEMENT (Continued)

E. A **$350** refundable damage deposit is required for rental of the eligible Amenity Spaces. All rented spaces must be left in the appropriate condition after each use (trash/recycling removed, food waste removed, restroom facility tidied, and ensure door is locked when leaving). Owner will be billed for any expense incurred by the Association to clean and/or repair the Amenity Spaces that exceeds the $350 deposit after being provided notice and hearing. Member is responsible for the cost of any damage or cleanup cost to any portion of the rented Amenity Space resulting from this function and or guests. Damage deposit will be refunded within three (3) weeks following the post-inspection of the Event Date, if the Amenity Spaces(s) is clean and if no damage occurred. Certain public interest events are exempted from the deposit under Civil Code section 4515.

F. Owner is responsible to ensure that all their guests abide by the Association CC&Rs, Operating Standards, Rules and Policies ("Governing Documents"). Violation of these Governing Documents by Owner or their guests, will subject the responsible Owner(s) to disciplinary fines, penalties and other violation enforcements by the Association.

G. The Amenity Spaces shall be inspected by a Board or Committee Member, or vendor designated by Management before and after each use, prior to refunding the Member's deposit.

H. Please refer to the hours for other Amenity Spaces as the hours of permissible use may vary between Spaces.

I. Clubhouse and Amenity Space Event Reservation may not exceed five (5) hours in a single day.

J. No more than one (1) event shall be held in a single day.

K. Smoking and vaping are not permitted anywhere on property at any time.

L. Use of other building facilities and grounds located adjacent to the Clubhouse area are not included with the reservation of this Room.

M. The Clubhouse is available for use of groups of no more than twenty-five (25) persons per fire code.

N. Amenity Space furniture and its contents shall not be removed from the room and must be returned to its original location.

400 CHINA BASIN

AMENITY SPACE RESERVATION AGREEMENT (Continued)

O. No alcoholic beverages are permitted in the Amenity Clubhouse nor other Amenity Spaces unless appropriate liability insurance has been obtained by the renter of the Amenity Space(s.)

P. A Owner/Renter must obtain an insurance policy, or a rider to an existing policy, of $1,000,000 property damage and $1,000,000 personal liability coverage naming the Association (China Basin Homeowner's Association) as an additional insured, proof of which must be furnished to the Association at the time this Agreement is signed and the deposit received. Certain public interest events are exempted from this insurance requirement under Civil Code section 4515.

I, the undersigned, have read the Clubhouse and Amenity Use and Reservation Rules and acknowledge receipt of a copy hereof, and agree to comply.

_____ _____

Owner's Signature Date

ANY ABUSE OF THE FACILITIES, ABUSE OF THE EQUIPMENT, OR VIOLATIONS OF THE USE AGREEMENT BY OWNERS OR GUESTS CAN RESULT IN INDEFINITE LOSS OF RECREATION ASSOCIATION PRIVILEGES, LOSS OF DAMAGE DEPOSIT AND/OR AS DETERMINED BY THE BOARD OF DIRECTORS AND/OR MANAGEMENT.

Please make your two (2) checks payable to China Basin Owners Association and mail with this completed form to address below. No use is authorized except for the Event Date applied for on this form.

The China Basin Street Owners Association
c/o Action Property Management
655 Montgomery Street, Suite 1190
San Francisco, CA 94111

Please email questions to managerassistanthelp@actionlife.com

400 CHINA BASIN